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Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No.16640 of 2020

Ali Husnain
Versus
Inspector General of Punjab Police, Lahore etc.

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JUDGMENT

Date of Hearing:-	10.11.2022
Petitioner by:-	Mr. Munir Hussain Bhatti, Advocate.
Respondents by:-	Mr. Gohar Nawaz Sindhu, Addl. Advocate General alongwith Muhammad Saleem Sadiq, Technical Officer, Special Branch, Punjab.

CH. MUHAMMAD IQBAL, J:- Through this writ petition, the petitioner has challenged the legality of order dated 09.01.2020 passed by the Addl. Inspector General of Police, Special Branch, Punjab, Lahore who rejected the representation of the petitioner.

2. Brief facts of the case as contended by the learned counsel for the petitioner are that the petitioner was appointed as Operator BS-5-EDC on 13.10.2012 in Technical Cadre Special Branch Punjab Police, Lahore on contract basis and the same was extended from time to time uptill April, 2017 but thereafter, it was not further extended. In October, 2015 Punjab Public Service Commission, Lahore advertised the posts of Supervisor BS-14/EDC Technical Cadre Special Branch, Punjab Police, Lahore and the petitioner was declared successful candidate and selected on 26.09.2019 but his appointment letter was withheld due to his involvement in some

criminal case. Petitioner filed an application / representation which remained pending before the competent authority whereafter the petitioner filed Writ Petition No.75191/ 2019 before this Court in which a direction was passed vide order dated 11.12.2019 to respondent No.2 to decide the application / representation of the petitioner, if pending, through a speaking order within a month. In compliance of said direction, respondent No.2 decided the matter and rejected the representation of the petitioner vide impugned order dated 09.01.2020. Hence, this writ petition.

3. I have heard the arguments advanced by the learned counsels for the parties at full length and gone through the record with their able assistance.

4. As per notification No.SE-IV/7317-70/II, dated 26.06.2014 issued by the Govt. of the Punjab, Police Department, the competent authority has principally decided that all those candidates who during character verification, have been found involved in criminal cases (either under trial or acquitted on multiple grounds) are not eligible for appointment in Police Department. Further, as per clause-23 of the Standing Order No.6 of 2015 issued by the Govt. of the Punjab, Police Department, the candidates having criminal record cannot be appointed. For ready reference, clause-23 of the Standing Order *ibid* is reproduced as under:-

“BACKGROUND INVESTIGATION.

The District Police Officer, shall send the requisite information of the successful candidates to the Addl: Inspector General of Police, Special Branch and also to the concerned Police Station of the District where the candidate resides;

The two offices i.e. Addl: IGP Special Branch and District Police Officer concerned shall put every effort to verify the personal character, academic certificates and other relevant facts of the successful candidates.

The verification reports shall be minutely scrutinized by the DPO before issuing appointment letter.

Candidates having criminal record or affiliation with any proscribed organization shall not be appointed.”

As per Para 23 of the Standing Order No.6/2015 amended vide No.SE-III/11005-60/VI, dated 01.06.2018 the submission of solemn affidavits regarding non-involvement of the candidate in any criminal case was made obligatory. The said Para is reproduced as under:-

“i) All the candidates submit an affidavit for non-involvement in criminal cases at the time of submission of application forms.

ii) If the case is registered against an applicant after the last date of submission of application form, but the applicant is not challaned & declared innocent; then that would not be a ground for rejection of an applicant. However, DPO must examine that case is not cancelled or accused declared innocent due to compromise between parties.”

For the personnel of disciplined force (Police Force) honesty, loyalty, integrity, intelligence and competence are sine qua non in order to strengthen the public trust and confidence on the security force. In order to achieve such objectives, the respondent-department has the jurisdiction to formulate a befitting policy to sift out the most suitable, competent, efficient, honest and trustworthy candidates having unblemished record. Similarly the appointing authority is fully empowered by law to refuse appointment of a candidate who is found involved in criminal cases (i.e. either under trial or acquitted on the basis of compromise) and has un-cleaned record.

5. The petitioner was appointed on contract basis as Operator (EDC) Special Branch, Punjab Police on 13.10.2012 for a period of

three years and during this service tenure, the respondent-department received many complaints against him regarding extortion of money on different pretexts from public and his contract was not extended further. A complaint was also filed by SSP, Special Branch, Sheikhpura Region regarding habitual irresponsible behaviour of the petitioner and also misuse of his official status. Apart from the above allegations, on the complaint of one Munir Ahmad a criminal case FIR No.346/2013 dated 21.09.2013 under Sections 337/385/PPC, Police Station Faizabad, District Nankana Sahib was registered against the petitioner with the allegations of sexually abusing a child namely Faizan son of the complainant and filming of the said heinous offence and then blackmailing child as well as his family for extortion of money. As per record, during investigation of aforementioned criminal case [FIR No.346/2013], the petitioner was found involved in the commission of offence and a challan was submitted in the Court to face the trial. The petitioner was acquitted in the aforesaid case on the basis of a compromise with the complainant, which could not be termed as meritorious acquittal, as such, the acquittal on compromise leaves a shadow of doubt on the character of the petitioner.

6. In the instant case the petitioner applied for the post of Supervisor BS-14/EDC in the Police Department / a disciplined force and in October, 2015 he was declared successful by the Punjab Public Service Commission and sent recommendations to

the Inspector General of Police vide letter dated 08.02.2016 and stated that the recommendation is subject to certain conditions. For reference, paragraph No.7 of the letter dated 08.02.2016 is reproduced as under:

7. If the degrees/certificates of academic qualifications/any other particular/document or information submitted by the candidates are subsequently found to be bogus/forged/incorrect etc, the Commission shall exercise its legal right to withdraw the recommendations in respect of that candidate (apart from any other action on grounds of criminal offence) in terms of Regulation Nos.224 & 56 of the PPSC Regulation, 2015.

In the aforesaid paragraph, the Punjab Public Service Commission has clarified that the recommendation made by the Commission is subject to the fulfillment of certain conditions and in case of non-fulfillment of these conditions, the Commission can also withdraw the recommendations, as such, the petitioner cannot claim his appointment as a right on the basis of recommendations of the Commission. The appointment letter of the petitioner was not issued by the respondent-department on the ground that not only there were complaints about his work and conduct but he has also been involved in unlawful and criminal activities during his earlier tenure of service in the respondent-department. On the application of the petitioner, the Additional Inspector General (Special Branch), Punjab constituted following committee to look into the matter:

- i. Director R&R, Special Branch HQrs, Lahore
- ii. SP/Security, Special Branch, HQrs, Lahore (Inquiry Officer)
- iii. SP/Special Branch, Sheikhpura Region.

The SSP, Special Branch, Sheikhpura Region, Sheikhpura submitted report to the Additional Inspector General of Police,

Special Branch, Punjab Lahore as well as the DIG Intelligence, which is reproduced as under:

“Subject: SPECIAL REPORT AGAINST ALI HASNAIN, EDC OPERATOR SPECIAL BRANCH, SHEIKHUPURA REGION.

Memorandum:

Kindly refer to the subject cited above.

2. It is submitted that Ali Husnain, EDC Operator is presently serving in Special Branch Sheikhupura Region. During his posting in Special Branch Sheikhupura Region he was found absent from his duty on following occasions and was issued explanation No 198/PA/SB-SKP dated 28-05-2016.

- Date 28-04-2016 vide D.D.R No.17, absent for 6 hours & 40 minutes.
- Date 11-05-2016 vide D.D.R No.5, absent for 1 day, 07 hours & 05 minutes.
- Date 20-05-2016 vide D.D.R No.05, absent for 03 days, 05 hours & 15 minutes
- Date 26-05-2016 vide D.D.R No.10, absent for 04 hours.

3. Muhammad Riaz (deceased) Ex-Techincal Officer & In-charge EDC, SB, SKP Region, submitted a report on 30-5-2016 against him that during visit of VIPs on 28-05-2016 he deliberately not reported at his duty point for search & sweeping and this act of him shows his irresponsible behavior so departmental action was requested against him as he is a habitual absentee. On the complaint show cause notice No 244/PA/SB-SKP dated 30-6-2016 was issued to him.

4. On repeated complaints, the undersigned marked preliminary inquiry against Ali Husain EDC Operator to Riaz Ahmed Bhatti DSP/DO, SB, District Sheikhupura who also confirmed on his inquiry report that he is irresponsible official and a habitual absentee.

5. On 28-06-2016, he was posted to SB Nankana Sahib but he continued his previous attitude. DO/DI Nankana Sahib submitted a report against him stating therein the following complaints:

- Ali Husain EDC Operator is a resident of village Faizabad, PS Faizabad District Nankana, having immoral character as to sodomise minor boys is his habit. In the year 2013 he sodomized Faizan Ahmad aged approximately 14/15 years s/o Muneer Ahmad caste Bhular r/o Kot Yaqoob PS Faizabad, made his movie clip and blackmailed him off & on to extort money. FIR No34/14 u/s 377/385 PS faizabad was lodged against him (Copy enclosed). Ali Husain somehow managed to compel the plaintiff to withdraw the case against him.
- It has come to notice through reliable source that recently by misusing his official status as employee of Special Branch and by blackmailing he took 15000 as illegal gratification from shop of gas slanders in village Faizabad.
- Likewise he took 7000 as illegal gratification from Mr. Shar Khan r/o Ferozwala District Sheikhupura for verification of Afghan National Status.

6. As per reports of In-charge EDC SB Sheihupura Region and DO/DI SB, Nankana Sahib, it is evident that Ali Husain, EDC Operator is irresponsible, habitual absentee and malinger official

and will earn a bad name for the department hence he may immediately be closed to Head Quarters, Lahore and appropriate departmental action is requested to be taken against him, please.

The Additional Inspector General of Police, Special Branch, Punjab, while dismissing the application of the petitioner vide order dated 09.01.2020 observed as under:

“11. The petitioner was called and heard in person on 03.01.2020 by the competent authority. After perusal of record and personal hearing it has transpired that initially Mr. Ali Husnain, was recruited as Operator EDS. His contract extension was not recommended by his supervisory officer due to his involvement in immoral activities. Further FIR No34/14 u/s 377/385 PS Faizabad, District Nankana Sahib has been registered against him and while deciding his case the Honorable trial Court had observed that the witnesses have become hostile during the proceedings, and thus he was not acquitted on the merits of the case but rather it appears that a compromise was affected with the complainants, that's why the witnesses became hostile. This acquittal on compromise leaves a shadow of doubt on the character of Mr. Ali Husnain.

12. Special Branch is a very sensitive assignment and a person of dubious character cannot be posted on such assignment. After personal hearing and perusal of all relevant record, I find no merit in his petition, which is hereby rejected.

For the recruitment in the said institution, the incumbents should necessarily have an unblemished character, which is apparently found deficient in the petitioner who has deliberately concealed the material fact and he has come to this Court with soiled hands which disentitled him from any discretionary relief and this Court is well within jurisdiction to withhold the exercise of extraordinary constitutional jurisdiction in favour of the petitioner.

7. Furthermore, this contention of the learned counsel for the petitioner that despite having qualified, the petitioner was not recommended for appointment is misconceived as from the perusal of the record it reveals that the petitioner has failed to fulfill the

eligibility criteria required for the said post as he is found involved in a criminal case. The Punjab Public Service Commission while recommending the petitioner alongwith other candidates for the posts of Supervisor, vide letter No.PSC-RD-II-2016/35-RD dated 08.02.2016 clearly mentioned that recommendation of the said Commission are subject to certain conditions, as such, the recommendations made by the said Commission do not bear any compulsory binding obligation / duty upon the respondent-department to appoint the petitioner against the post especially when there are serious flaws in the character of the petitioner. The Hon'ble Supreme Court of Pakistan in Civil Petition Nos.1668-L and 1852-L of 2012 titled as *The Regional Police Officer, Faisalabad etc. Vs. Jabir Ali* has held as under:

“6. Admittedly when the respondent/ petitioner Jabir Ali gave his application to the department for recruitment into police service, three FIRs were pending against him and hence he falsely stated in such application that he was not involved in any criminal case. A police official should be honest, and law abiding himself and subject to discipline. Where, at the inception of his career, respondent/petitioner had made a false statement for the purpose of recruitment into the force, he cannot be expected to perform his duties honestly and diligently. Hence, he was correctly dismissed from service by the departmental authorities.”

(emphasis supplied)

Reliance is also placed on a case titled as Abdul Manan Vs. Provincial Police Officer and 2 others [2017 PLC (C.S.) 862] (D.B) and a judgment dated 12.10.2017 passed by a learned Division Bench of this Court in I.C.A. No.86949/2017.

8. Learned counsel for the petitioner has not pointed out any illegality or material irregularity in the impugned order passed by

the competent authority and has also not identified any jurisdictional defect.

9. In view of above, this writ petition is **dismissed** being devoid of any merits.

(CH. MUHAMMAD IQBAL)
JUDGE

Approved for reporting

JUDGE

Shahzad Mahmood